

a "first medical indication of a per se already known substance or composition" (G 2/08, OJ 2010, 456). Either a product for use in a method under Art. 53(c) EPC is new per se and can be the subject-matter of a product claim under Art. 53(c), second sentence, EPC or a product (substance or composition) is already known per se but can nevertheless be patented under Art. 54(4) EPC, provided it has not yet been used in a method under Art. 53(c), first sentence, EPC. The first medical indication of a known substance or composition is generally the object of broad generic claims in the form of **use-related product claims**. In G 5/83 (OJ 1985, 64) the Enlarged Board observed that the inventor of a "first medical indication" could obtain purpose-limited product protection for a known substance or composition, without having to restrict himself to the substance or composition when in a form technically adapted to a specified therapeutic purpose. The appropriate protection for him was, therefore, in its broadest form, a purpose-limited product claim.

Accordingly, under Art. 54(4) EPC, known substances or compositions are deemed to be new, provided they are used for the first time in such a medical method. According to the case law of the boards of appeal, the first to show a use of a substance or composition in a medical method should receive broad protection covering any use in a medical method, even if only one specific use is disclosed in the application (see T 128/82, OJ 1984, 164; T 36/83, OJ 1986, 295).

7.1.2 Scope of a purpose-related product claim

In T 128/82 (OJ 1984, 164) the board considered the question of a first medical indication with regard to the breadth of the purpose-related product claim. The examining division had refused the application on the grounds that it failed to fulfil the requirements of Art. 52(4) and 54(5) EPC 1973 (now Art. 53(c) and 54(4) EPC), as the claims were not limited to the specific therapeutic use of the known compounds as first discovered. The board had to consider whether the broad version of the claims was allowable having regard to Art. 54(5) EPC 1973 and, in particular, whether the EPC 1973 offered a basis for a limited statement of therapeutic purpose susceptible of narrow interpretation. In the opinion of the board the EPC 1973 neither prohibited nor required an unlimited statement of purpose. It held that Art. 54(5) EPC 1973 permitted a purpose-limited substance claim stating a general therapeutic purpose and found that where a known compound was for the first time proposed and claimed for use in therapy, the fact that a specific use was disclosed in the specification did not in itself call for a restriction of the purpose-limited product claim to that use (see also T 43/82 and T 36/83, OJ 1986, 295).

The board noted that under Art. 54(5) EPC 1973 a compound which was known but not used therapeutically was to be regarded as novel. Novelty, however, was not only destroyed by the fact that the same specific therapeutic effect was already known in the art, but suffered also from the disclosure of any other specific therapeutic application. The disclosure of any specific effect, therefore, always had the same consequences as far as novelty was concerned – which in turn made it fair to regard as admissible a broad statement of purpose covering all and any specific indications.

7.1.3 Protection of a preparation in the form of a "kit-of-parts"

It is the boards' settled case law that a "kit-of-parts" described the juxtaposition of separate but functionally interacting individual components.

In T.9/81 (OJ 1983, 372) the board held that combined preparations, the individual components of which represented known therapeutic agents, might be protected in a formulation corresponding to Art. 54(5) EPC 1973 (now Art. 54(4) EPC) even when claimed as a kit-of-parts, providing those components formed a functional unity (true combination through a purpose-directed application. Claim 1 referred to a combined preparation containing an oxazaphosphorin cytostatic agent and the sodium salt of 2-mercapto-ethane-sulphonic acid as therapeutic active ingredients. The first-mentioned component of the product was known, and the second was a known mucolytic agent. According to the documentary prior art available to the board, the two active ingredients had never been used together for a **new joint effect** and were **unknown as a composition**. The active ingredients which were administered preferably at the same time according to the invention did not therefore represent a mere aggregate of known agents, but a new combination with the surprising, valuable property that the severe side-effects to be expected when administering the cytostatic agents were absent as a result of the detoxifying effect of the sodium 2-mercapto-ethane-sulphonate.

7.1.4 Further technical information as compared with the state of the art

In T.1031/00 claim 1 was directed to the first medical use of (-) amlodipine, namely the treatment of hypertension. However, the prior art document already showed the ability of (-) amlodipine to inhibit calcium ion influx into rat aorta tissue in vitro as indicative of its effectiveness in the treatment of hypertension. It also disclosed that amlodipine was then undergoing phase III clinical trials for the treatment of hypertension. The board found that the description **provided no further evidence or data** showing the actual antihypertensive effect of the (-) isomer of amlodipine in humans or animals than did the prior art. The board concluded that the subject-matter of the patent application was anticipated by the disclosure in that document; in other words, document (3) disclosed the same medical use as the application at issue.

7.2. Second (or further) medical use

7.2.1 Introduction

A substance or composition for which a first medical use is already known may nevertheless be patentable under Art. 54(5) EPC for a second or further use in a method under Art. 53(c) EPC if that use is novel and inventive. According to G.5/83 (OJ 1985, 64), a further medical use claim is a claim directed to the use of a substance or composition for the manufacture of a medicament for a specified therapeutic application. Such a claim is novel if the therapeutic application, i.e. the therapeutic effect obtained by the claimed use, is novel. The Enlarged Board explained the legal and historical background to the patentability of further medical uses in G.2/08 (OJ 2010, 456).

Under the EPC 1973 a patent for a further medical application could, pursuant to a line of case law first set out in decision G 5/83 (OJ 1985, 64), be granted for a claim directed to the use of a substance or composition for the manufacture of a medicament for a specified therapeutic application ("**Swiss-type claim**"). The novelty of the subject-matter of such a claim could be derived not only from the novelty of the substance or of the method of manufacture, but also from the new therapeutic application (G 5/83). This "special approach to the derivation of novelty" constituted a narrow exception to the general novelty requirement and was not to be applied in other fields of technology.

Under Art. 54(4) EPC (former Art. 54(5) EPC 1973), known substances or compositions are deemed to be new, provided they are used for the first time in such a medical method ("first use in a medical method"). In the early 1980s, the Enlarged Board of Appeal was asked to decide whether any further medical use could receive patent protection under the EPC in spite of the wording of Art. 54(5) EPC 1973 (now Art. 54(4) EPC) which seemed to limit patentability to the first medical use. The Enlarged Board extended the notional novelty provided for in former Art. 54(5) EPC 1973 to apply to each further medical use in the so-called "Swiss type claim", i.e. to a claim "directed to the use of a substance or composition for the manufacture of a medicament for a specified new and inventive therapeutic application" (G 5/83, OJ 1985, 64; legal advice from the Swiss Federal Intellectual Property Office, OJ 1984, 581).

During the course of the revision of the EPC 2000, former Art. 54(5) EPC 1973 ("first use in a medical method") was renumbered to become Art. 54(4) EPC and a new Art. 54(5) EPC was introduced to provide protection for second medical uses. The new Art. 54(5) EPC eliminates any legal uncertainty on the patentability of further medical uses. It unambiguously permits purpose-related product protection for each further new medical use of a substance or composition already known as a medicine.

Claims to a second medical use would be drafted as product claims relating to a specific second or further medical use (see T 1599/06).

In T 1314/05, the board stated that decision G 5/83 made it quite clear that its special approach to the derivation of novelty was applicable only to inventions or claims relating to the use of substances or compositions in a method of treatment referred to in Art. 52(4) EPC 1973, where that method did not yet form part of the state of the art. The board decided that G 5/83 did not imply that the special approach to novelty assessment which was associated with the Swiss-type claim for substances or compositions could be applied to the use of a device to produce an appliance intended for medical purposes. Extension of that special approach to the production of such appliances ran counter to the general legal principle that exceptions are to be construed narrowly. This was confirmed by the fact that the EPC 2000 legislator in Art. 54(5) EPC expressly restricted the exception concerning the second medical use to substances or compositions.

The board in T 1099/09 found that it followed clearly and directly from the EPC that Art. 54(4) and (5) EPC applied only to products which were substances or compositions and that no other products were patentable under them. The therapeutic effect of a

medicinal product usually resulted from at least one substance or composition used in it and generally known as its active ingredient.

In T 1758/07 the board stated that G 5/83 only applies to second (and further) medical indications. It followed from this that the legal fiction behind G 5/83, namely that the therapeutic treatment according to Art. 52(4) EPC 1973 was a limiting feature, was applicable only if a therapeutic treatment was indeed a second (or further) medical indication. If, however, the claimed subject-matter related to the first medical indication, G 5/83 provided no legal basis for additionally claiming the same subject-matter as a second medical indication.

In G 2/08 (OJ 2010, 456), the Enlarged Board of Appeal considered the consequences of the revised EPC for claims in the Swiss-type format. It decided that, where the subject-matter of a claim is rendered novel only by a new therapeutic use of a medicament, such claim may no longer have the format of a so-called Swiss-type claim as instituted by decision G 5/83 (OJ 1985, 64). As Art. 54(5) EPC now permits purpose-related product protection for any further specific use of a known medicament in a method of therapy, the loophole existing in the provisions of the EPC 1973 is now closed – when the reason for the law ceases, the law itself ceases. In view of the fact that patents had been granted for claims of this (Swiss) type and many applications seeking such patent protection were still pending, the Enlarged Board considered that a transitional arrangement was necessary to ensure legal certainty and to protect the legitimate expectations of applicants. It therefore set a time limit of three months from publication of its decision in the Official Journal of the EPO for future applications to comply with the new situation. In this respect the relevant date for future applications was ordered to be their date of filing or, if priority had been claimed, their priority date.

G 2/08 is discussed in further detail in this chapter I.C.7.2.4 e) "New dosage regimen".

For the "Formulation of claims under the EPC 1973", see "Case law of the Boards of Appeal of the EPO", 6th edition 2010.

7.2.2 Transitional provisions

According to Art. 1, No. 3 of the decision of the Administrative Council of 28 June 2001 under Art. 7 of the Act revising the EPC of 29 November 2000, revised Art. 54(5) EPC is applicable to European patent applications pending at the time of the EPC 2000's entry into force, insofar as a decision on the grant of the patent has not yet been taken (see decision T 1127/05, T 406/06, T 1599/06; see also OJ SE 4/2007).

Art. 54(5) EPC was introduced into the Convention as part of the revision of the EPC. Under the transitional provisions for EPC 2000, Art. 54(5) EPC shall apply to pending applications in so far as a decision on grant has not been taken (T 1599/06 and T 1127/05).

In T 1599/06 the board considered it already necessary to take the new situation under the EPC 2000 into account when examining the claims at issue. Claim 1 was interpreted

as a product claim for a second medical use in accordance with Art. 54(5) EPC (see also T. 385/07, a case involving similar circumstances).

7.2.3 Purpose-limited product claims and Swiss-type claims – scope of protection

In T. 1780/12 the board examined in the context of the issue of double patenting whether the subject-matter of a claim directed to a new medical use of a known compound was the same, irrespective of whether the claim was in the "Swiss-type" format or in the format according to Art. 54(5) EPC. The decision related to a divisional application with a main claim in the form of a purpose-limited product claim under Art. 54(5) EPC. Claim 1 of the parent application was granted in the "Swiss-type" format. The examining division held that the claims of the parent and the divisional applications were directed towards the same subject-matter "in the sense that both these claims concern the same invention claimed in a different format." It refused the application on the basis that double patenting was prohibited. The board held that there was no double patenting. The decisive issue was whether the claims of the patent granted on the divisional and that granted on the parent had the same subject-matter. The category of a claim and its technical features constitute its subject-matter and determine the protection conferred (see G. 2/88, OJ 1990, 93). The claims in question were of different categories: Swiss-type claims were purpose-limited process claims (use of X for the manufacture of a medicament for the treatment of Y) and claims formulated in accordance with Art. 54(5) EPC were purpose-limited product claims (X for use in the treatment of Y). As regards the technical features, the board concluded that both sets of claims defined the same compound and the same therapeutic use, but that the Swiss-type claims comprised in addition the feature of manufacturing a medicament whereas the claim in accordance with Art. 54(5) EPC did not. The claimed subject-matter was thus different. This outcome has been followed in decision T. 879/12. As regards the scope of protection, the board considered that a purpose-limited process claim, such as a Swiss-type claim, also conferred less protection than a purpose-limited product claim, such as a claim in accordance with Art. 54(5) EPC (see also T. 13/14; for further details with regard to the scope of protection, see chapter II.F.5. "Prohibition of double patenting").

In T. 1570/09 the set of claims of the main request contained two independent claims, claim 1 in Swiss-type form and claim 4 as a purpose-limited product claim under Art. 54(5) EPC. The claims aimed to seek protection for one and the same medical use of one and the same active drug. The purpose-limited product claim 4 sought protection for the same medical indication of the same substance as the Swiss-type claim 1, and the notional novelty of claim 1 was not derived from the "medicament" itself. The board stated that there was no longer an objective reason for justifying the simultaneous presence of both claims in the set of claims to be proposed for grant. Allowing such a set of claims would cause the contradictory legal situation that the old provisions in Art. 54 EPC 1973 together with Art. 52(4) EPC 1973, and the new provisions in Art. 54 EPC together with Art. 53(c) EPC, would apply simultaneously to one and the same set of claims. Art. 54(5) EPC applied to the case at issue and thus the purpose-limited product claim 4 of the main request was allowable in view of a new medical indication of a known substance. The Swiss-type form was conceived as an exception under the old law (EPC 1973). Therefore, in the board's view, there was no longer any legal reason for